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File No.: EXP202409655

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On October 4, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against IZQUIERDA UNIDA (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202409655

### AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: A.A.A. (hereinafter, the first complainant) and B.B.B. (hereinafter, the second complainant) on January 29 and 30, 2024, respectively, filed separate complaints with the Spanish Agency for Data Protection directed against the political party IZQUIERDA UNIDA with NIF G78269206 (hereinafter, the respondent), with indications of a possible breach of the provisions of Article 5.1.f), Article 9, and Article 32, all of which are from the GDPR.

The reason on which both base their complaint is as follows:

The complainants state that the respondent party has sent an electronic communication to multiple recipients without concealing their email addresses, including their own, to inform its affiliates about a series of conferences.

Both complainants provide a copy of the electronic communication received on 01/29/24, showing in the header of said communication as sender Izquierda Unida Valladolid Ciudad “(\*\*EMAIL.1)”, and as recipients for Izquierda Unida Valladolid “(\*\*EMAIL.2)” and “in copy (Cc.)” 148 email addresses where the names and surnames of the recipients also appear.

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Along with the complaint, they provide:

- The first complainant provides a copy of the email.
- The second complainant provides a screenshot of the email.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified electronically with the date of access to the notification on 03/07/2024, as stated in the DEHÚ certificate in the file.

On 07/26/2024, a response letter from the respondent party was received in this Agency, attaching a Compliance Plan and an Annex referring to the email that the respondent sent to all recipients due to "email sending error."

The submission of the aforementioned response letter is late since the one-month period granted by this Agency ended on 04/08/2024.

THIRD: On April 29, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

### LEGAL GROUNDS

I

## Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this Organic Law, and by the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

## II

Unfulfilled obligation. Duty of confidentiality.

Article 5.1.f) of the GDPR in relation to the principle of integrity and confidentiality in the processing of data establishes that:

"1. Personal data shall be:

f) processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of appropriate technical or organizational measures (integrity and confidentiality)."

The aforementioned principle of confidentiality therefore requires the protection of personal data against unauthorized access, use, and disclosure, as Recital 39 of the aforementioned GDPR states: "[...] Personal data must be processed in a manner that ensures an adequate level of security and confidentiality of personal data, including to prevent unauthorized access or use of such data and the equipment used in the processing."

Regarding the processing of special categories of personal data, Article 9.1 of the GDPR prohibits the processing of personal data revealing "... racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data..."

In the present case, it is noted that the respondent party on 29/01/2024 sent an email to multiple recipients, among whom were the two claimant parties, in which the email addresses, as well as the names and surnames of all recipients, were visible, revealing to the recipients the data of political affiliation.

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the political party in question sent an email to multiple recipients, thereby revealing both their email addresses and names and surnames and data of political affiliation; having allegedly committed an infringement of the confidentiality principle established in Article 5.1.f) of the GDPR.

## III

Classification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could constitute the commission of the infringement classified in Article 83.5.a) of the GDPR, which states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) "The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

In this regard, the LOPDGDD, in its Article 71, establishes:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 LOPDGDD “Very serious infringements” provides: “1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial breach of the articles mentioned therein, and in particular, the following: a) “The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

IV

#### Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intent or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;

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d) the degree of responsibility of the data controller or the data processor, taking into account the technical or organizational measures they have applied in accordance with Articles 25 and 32;

e) any previous infringement committed by the data controller or the data processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or the data processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or the data processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

In this case, considering that two complaints have been filed for the same fact, the number of personal email accounts exposed, the category of special data disclosed, and in accordance with the transcribed provisions, and without prejudice to what results from the instruction of the procedure, the initial assessment of the amount of the fine is €3,000 for the infringement of Article 5.1(f) of the GDPR.

V

#### Article 32 of the GDPR

Article 32 of the GDPR regarding the security of processing states that:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller and the data processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may

include, among others:

- a) the pseudonymization and encryption of personal data.
  - b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services.
  - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident.
  - d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.
2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.
3. Adherence to an approved code of conduct under Article 40 or to an approved certification mechanism under Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.
4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the data controller or the data processor and having access to personal data only processes such data on instructions from the data controller, unless required to do so by Union or Member State law.”

In this case, regarding the appropriate technical and organizational measures to ensure a level of security appropriate to the risk, the facts presented provide indications of the absence of adequate security measures concerning the sending of communications within the organization, particularly those that ensure the non-disclosure of the email addresses to which they are directed; and this is because the party being complained against used an organizational email account without utilizing the “blind carbon copy” functionality.

According to the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the political party being complained against did not adopt the appropriate security measures when sending an email to multiple recipients without using the “blind carbon copy” functionality. Therefore, it is understood that it has committed a presumed infringement for failing to maintain the due security in the processing of data established in Article 32 of the GDPR.

VI

Classification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which states:

“Violations of the following provisions shall be subject to administrative fines of up to €10,000,000 or, C/ Jorge Juan, 6

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In the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the obligations of the data controller and the data processor in accordance with Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 establishes that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law.”

For the purposes of the statute of limitations, Article 73 “Serious Infringements” of the LOPDGDD indicates:

“According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and will be subject to a two-year statute of limitations for infringements that

constitute a substantial violation of the articles mentioned therein, particularly the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.”

## VII

### Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR, previously cited in Legal Basis IV, must be observed.

Taking into consideration the actions taken by the data protection officer of the complained political party as stated in the submitted document, including sending an email to all recipients apologizing for the error made; and in accordance with the transcribed provisions, and without prejudice to what results from the instruction of the procedure, the initial assessment of the amount of the fine is €2,000 for the infringement of Article 32 of the GDPR.

## VIII

### Adoption of Measures

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with Article 58.2 d) of the GDPR, which states that each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe.”

In this case, it may be ordered that within two months the necessary measures be adopted to ensure the confidentiality of personal data associated with the internal communications of the organization. It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,  
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against IZQUIERDA UNIDA, with NIF G78269206, for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.4.a) of the GDPR and Article 83.5 of the GDPR.

SECOND: TO APPOINT C.C.C. as the instructor and D.D.D. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the two complaints filed by the complainant parties one and two, their documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction:

- For the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of that regulation, an administrative fine of €3,000.00

- For the alleged infringement of Article 32 of the GDPR, classified under Article 83.4.a) of that regulation, an administrative fine of €2,000.00

FIFTH: TO NOTIFY this agreement to IZQUIERDA UNIDA, with NIF G78269206, granting them a hearing period of ten working days to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article

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64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for the submission of allegations to this initiation agreement, which will entail a reduction of 20% for each of the sanctions that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €4,000.00, resolving the procedure with the imposition of this sanction.

Likewise, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €4,000.00, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €3,000.00.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any administrative action or appeal against the sanction.

For these purposes, in the event of opting for any of them, you must send to the General Sub-Directorate of Data Inspection an express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction indicating which of the two reductions you are opting for or if it is for both.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (€4,000.00 or €3,000.00), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: XXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are opting.

You must also send the proof of payment to the General Sub-Directorate of Inspection along with the express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On October 16, 2024, the respondent has proceeded to pay the sanction in the amount of €3,000, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the renunciation of any administrative action or appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

### Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditional upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of the procedure EXP202409655, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER IZQUIERDA UNIDA to notify the Agency of the adoption of the measures described in the legal grounds of the Initiating Agreement transcribed in this resolution, within 2 months from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to IZQUIERDA UNIDA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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